

IN THE SENATE

SENATE BILL NO. 1336, As Amended

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING SECTION 33-1602, IDAHO CODE, TO REVISE PROVISIONS REGARDING CIVICS INSTRUCTION; AMENDING CHAPTER 1, TITLE 33, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 33-118C, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING CURRICULAR MATERIALS FOR AMERICAN HISTORY AND CIVICS INSTRUCTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 33-1602, Idaho Code, be, and the same is hereby amended to read as follows:

33-1602. UNITED STATES CONSTITUTION -- NATIONAL FLAG AND COLORS -- NATIONAL ANTHEM -- "AMERICA" -- CITIZENSHIP -- CIVICS TEST. (1) The legislature finds that a somber reflection on the history of mankind shows that no free government or the blessings of liberty can be preserved by any people except through an adherence to moral virtue and by frequent recurrence to fundamental principles. The legislature finds and declares that the primary purpose of this state's system of public schools is to equip the youth of the state with the virtue and intelligence necessary for self-government through a liberal program of education that inspires a love of nation, fellow countrymen, and common history and culture.

(2) All secondary pupils at an Idaho public school shall receive instruction that ensures upon graduation that such pupils:

(a) Exemplify the cardinal virtues necessary for self-government and human flourishing, including:

(i) Prudence;

(ii) Justice;

(iii) Fortitude;

(iv) Moderation; and

(v) Patriotism;

(b) Understand the fundamental principles of the nation's republican form of government, including:

(i) The supremacy of the natural law over civil institutions;

(ii) That virtue or morality is a necessary spring of popular government and ordered liberty;

(iii) The self-evident truth that all men are created equal and endowed by their creator with inalienable rights;

(iv) That civil society is a social compact, by which the whole people covenants with each citizen and each citizen with the whole people, and that all shall be governed by certain laws for the common good;

(v) That as members of the body-politic, every citizen has a duty to promote the common good of the whole;

(vi) That the people are the original fountain of all legitimate authority, denoting that just government is contingent upon the consent of the governed;

(vii) That the first aim of every political constitution is to obtain leaders who possess the most wisdom to discern and most virtue to pursue the common good of the society, and that this is most effectually accomplished through a system of representation;

(viii) The rule of law and not of men;

(ix) Reverence for the republic's constitutional order and the importance of the separation of powers as a bulwark against arbitrary and despotic government;

(x) The double security given to American liberties by the constitution's system of federalism and the value of the union as the source of national prosperity and independence; and

(xi) That the preservation of the republic depends, above all else, on the vigilance and public-spiritedness of the American people; and

(c) Understand the content, history, meaning, significance, and effect of key historical documents, including:

(i) The magna carta;

(ii) The mayflower compact;

(iii) The Massachusetts body of liberties;

(iv) The English bill of rights and act of toleration;

(v) Patrick Henry's "Give Me Liberty or Give Me Death!";

(vi) Thomas Paine's "Common Sense";

(vii) The declaration of independence;

(viii) The articles of confederation;

(ix) The Virginia declaration of rights of 1776;

(x) The Massachusetts constitution of 1780;

(xi) The Rhode Island 1784 act for the abolition of slavery;

(xii) The Northwest ordinance;

(xiii) The Virginia statute for religious freedom;

(xiv) The United States constitution and the bill of rights;

(xv) The federalist papers;

(xvi) George Washington's letter to the Hebrew congregation;

(xvii) George Washington's farewell address;

(xviii) Thomas Jefferson's first inaugural address;

(xix) The Monroe doctrine;

(xx) Alexis de Tocqueville's "Democracy in America";

(xxi) The Lincoln-Douglass debates;

(xxii) The emancipation proclamation;

(xxiii) The Gettysburg address;

(xxiv) The constitution of the state of Idaho; and

(xxv) Other similar documents that are important to the history and heritage of the United States and Idaho.

(3) All secondary pupils in grades 9 through 12 shall be required to complete two (2) credits in American history and two (2) credits in American government, encompassing a strong emphasis on civics.

1 (4) American history coursework in all public schools shall include in-
 2 struction on the American revolution and the American founding, with atten-
 3 tion given to the following, at a minimum:

4 (a) How the American founding was the culmination of the Western tra-
 5 dition, including the influence of Christianity, the enlightenment,
 6 Greek democracy, Roman republicanism, and the English legal tradition;

7 (b) The fundamental principles of the American revolution as articu-
 8 lated in the declaration of independence, including liberty, equality,
 9 natural rights, national sovereignty, republican virtue, and self-gov-
 10 ernment;

11 (c) The contribution of America's original Anglo-American heritage and
 12 colonial experience to the development of the nation's republican in-
 13 stitutions;

14 (d) The political and military narrative of the causes and progress of
 15 the American revolution;

16 (e) The deeds and civic virtues exemplified in the lives of America's
 17 founding fathers;

18 (f) The United States' founding documents and their original intent;

19 (g) Instruction on the symbols associated with America's national
 20 heritage originating from the American revolution, including the min-
 21 uteman, the liberty bell, the liberty tree, lady Columbia, the great
 22 seal of the United States, the pine tree flag, the Gadsden flag, "join or
 23 die," the Betsy Ross flag, and the bald eagle;

24 (h) The historical development of the United States' republican form of
 25 government, including the proceedings of the Philadelphia convention
 26 and ratification debates that led to the adoption of the United States
 27 constitution and the bill of rights;

28 (i) The political narrative of the early republic under the founding
 29 presidents; and

30 (j) How slavery is antithetical to the principles of the declaration of
 31 independence and the efforts during the American founding and early re-
 32 public to abolish slavery.

33 (5) American history coursework in all public schools shall include in-
 34 struction on how totalitarian ideologies, such as communism and fascism, are
 35 antithetical to the fundamental principles of America's republican form of
 36 government, with attention given to, at a minimum:

37 (a) America's triumph over totalitarian regimes in the second world war
 38 and cold war; and

39 (b) The failures and atrocities of Nazi Germany, the Soviet Union, and
 40 People's Republic of China, including Kristallnacht, the Holocaust,
 41 the red terror, dekulakization, Stalin's great purge, the five-year
 42 plan, the holodomor, the great leap forward, and the cultural revolu-
 43 tion.

44 (6) American government coursework in all public schools shall ensure
 45 that students understand the fundamental principles of America's republican
 46 form of government outlined in subsection (2) (b) of this section, and shall
 47 include instruction on:

48 (a) The influence of the Western intellectual tradition on the United
 49 States constitution, including the political philosophy of John Locke

1 and Montesquieu, Greek democracy, Roman republicanism, and British
2 constitutionalism;

3 (b) Primary documents articulating the fundamental principles of Amer-
4 ica's constitutional system of government, including excerpts from the
5 declaration of independence, the preamble of the Massachusetts consti-
6 tution of 1780, George Washington's letter to the Hebrew congregation,
7 "Federalist 9," "Federalist 10," "Federalist 39," "Federalist 51,"
8 "Federalist 63," "Federalist 70," and "Federalist 78;" and

9 (c) How the constitution of the state of Idaho embodies the principles
10 of the American founding, such as section 1, article I, regarding the
11 inalienable rights of man; section 2, article I, regarding the polit-
12 ical power inherent in the people; section 3, article I, regarding the
13 state as an inseparable part of the union; section 1, article II, re-
14 garding the departments of government; section 24, article III, regard-
15 ing the promotion of temperance and morality; section 1, article IX, re-
16 garding the legislature's duty to establish a system of free schools;
17 and section 1, article XIV, regarding persons subject to military duty.

18 (7) All public schools shall include instruction in secondary English
19 language arts or communications coursework that incorporates, when appro-
20 priate, primary documents and literature from or about the American revo-
21 lution, American founding, or early republic, provided that such materials
22 align with the criteria provided in section 33-118C, Idaho Code.

23 ~~(1)~~ (8) Instruction in the United States constitution, the fundamental
24 principles of America's republican form of government, and the virtues nec-
25 essary for good citizenship shall be given in all elementary and secondary
26 schools. The state board of education shall adopt any materials as may be
27 deemed necessary for such purpose and shall also determine the grades in
28 which such instruction shall be given.

29 ~~(2)~~ (9) Instruction in the proper use, display, and history of and re-
30 spect for the American flag and the national colors shall be given in all ele-
31 mentary and secondary schools. Such instruction shall include the pledge of
32 allegiance to the flag and the words and music of the national anthem and of
33 "America."

34 ~~(3)~~ (10) Every school board of trustees shall cause the United States
35 flag to be displayed in every classroom during the school hours of each
36 school day.

37 (11) Every school board of trustees is encouraged to display histori-
38 cal portraits of George Washington in a conspicuous place in each classroom
39 that is used for history, civics, or social studies instruction and in each
40 kindergarten through grade 5 classroom. The state superintendent of public
41 instruction, or designee, shall select the portraits.

42 ~~(4)~~ (12) Every public school shall offer the pledge of allegiance or the
43 national anthem in grades 1 through 12 at the beginning of each school day.

44 ~~(5)~~ (13) No pupil shall be compelled, against the pupil's objections or
45 those of the pupil's parent or guardian, to recite the pledge of allegiance
46 or to sing the national anthem.

47 ~~(6)~~ (14) Instruction in citizenship shall be given in all elementary
48 and secondary schools. Citizenship instruction shall include lessons on
49 the role of a citizen in a constitutional republic, how laws are made, how
50 officials are elected, and the importance of voting and of participating in

government. Such instruction shall also include the importance of respecting and obeying statutes that are validly and lawfully enacted by the Idaho legislature and the congress of the United States.

~~(7)~~ (15) Starting with the 2016-2017 school year, all secondary pupils shall show that they have met the state civics and government standards for such instruction through the successful completion of the civics test, participation in a course in United States government and politics, and participation in an associated college credit-bearing examination or alternate path established by the local school district or charter school that shows the student has met the standards. Assessment of standards shall be included as part of the course at the secondary level. Students graduating prior to January 1, 2029, who have satisfied the requirement outlined in this subsection prior to the start of the 2026-2027 school year are exempt from completing the requirement provided for in subsection ~~(8)~~ (16) of this section.

~~(8)~~ (16) Beginning with the ~~2026-2027~~ 2027-2028 school year, all secondary pupils shall show that they have met the state civics and government standards for such instruction through the successful completion of the civics test and participation in a course in United States government and history, or participation in an associated college credit-bearing course or examination. Assessment of standards shall be included as part of the course at the secondary level. A school district or public charter school shall document on the pupil's transcript that the pupil has passed the civics test pursuant to this subsection. ~~The school district or governing body of the charter school may~~ state superintendent of public instruction or the superintendent's designee shall determine the method and manner in which to administer the civics test. A pupil may take the civics test at any time after enrolling in grade 9 and may repeat the test as often as necessary to pass the test. The applicability of this subsection to a pupil who receives special education services shall be governed by such pupil's individualized education plan. For the purposes of this subsection, "civics test" means an assessment developed by the ~~state department of education~~ state superintendent of public instruction or the superintendent's designee with the approval of the state board of education that includes but is not limited to the following components from the Idaho content standards in American government:

- (a) The influence of the history of Western civilization on the founding of the American republic, including Greek democracy, Roman republicanism, and the English political and legal tradition;
- (b) The arguments presented in the declaration of independence;
- (c) The governing principles at the foundation of the United States constitution, including popular sovereignty, rule of law, federalism, separation of powers, checks and balances, judicial review, and majority rule and protection of minority rights;
- (d) The role of the bill of rights in limiting the powers of government and protecting individual rights;
- (e) The enumerated powers of the United States congress, including appropriations, declarations of war, commerce, confirmations, necessary and proper clauses, and oversight and impeachment;
- (f) The legislative process of how a bill becomes law;

(g) Article II of the United States constitution as it relates to the executive branch and the powers of the president, along with the development and growth of administrative agencies;

(h) The function and development of the electoral college;

(i) The power of the judiciary as conferred by article III of the United States constitution and legal precedents that developed these powers;

(j) The functions, powers, interactions, and dynamic relationships among federal, state, local, and tribal governments, including the tenth amendment to the United States constitution and legal precedent; and

(k) The organization and powers of state and local government as described in the constitution of the state of Idaho, including the legislative, executive, and judicial branches.

~~(9)~~ (17) Components of the assessment developed pursuant to subsection ~~(8)~~ (16) of this section shall be reviewed concurrently with the review of the Idaho content standards in American government. The state board of education may promulgate rules, subject to legislative approval, implementing the provisions of subsection ~~(8)~~ (16) of this section.

~~(10)~~ (18) Subject to state-appropriated funds, the state department of education shall make available funding for high quality professional development focused on advanced high school civics ~~or government courses, including those with college credit-bearing civics or government examinations~~ Western civilization, or United States history courses. Allowable expenses include summer institutes offered at different sites throughout the ~~state~~ United States and workshops to help high school teachers prepare students for success in college-level courses.

(19) A public charter school may request from the state board of education an exemption from subsections (2) (c) and (4) through (7) of this section based on the public charter school's unique mission as outlined in its performance certificate.

SECTION 2. That Chapter 1, Title 33, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 33-118C, Idaho Code, and to read as follows:

33-118C. CURRICULAR MATERIALS -- HISTORY AND CIVICS. (1) Notwithstanding the provisions of section 33-118, Idaho Code, the legislature finds that to promote the stability of America's republican form of government and to establish and maintain a general, uniform, and thorough system of public, free common schools, as provided in section 1, article IX of the constitution of the state of Idaho, all curricular materials adopted by school districts or public charter schools in the subjects of history, American government and civics, and social studies shall:

(a) Align with the provisions of section 33-1602, Idaho Code;

(b) Align with state content standards established by the state board of education;

(c) Be academically rigorous;

(d) Be historically and factually accurate;

(e) Directly utilize or otherwise promote engagement with primary sources and documents;

(f) Inspire patriotism;

1 (g) Contribute to the cultivation of good moral character and the
2 virtues necessary for self-government and human flourishing;

3 (h) Cultivate knowledge and appreciation for the nation's history and
4 cultural heritage as derived from the tradition of Western civiliza-
5 tion; and

6 (i) Foster an appreciation for and attachment to America's republican
7 form of government, along with a proper understanding of the pupils'
8 rights and duties as citizens of the state of Idaho and the United
9 States.

10 (2) School districts and public charter schools shall have the discre-
11 tion to utilize other supplementary instructional materials, such as pri-
12 mary sources, documents, maps, or other resources, provided that such ma-
13 terials align with the requirements provided in subsection (1) of this sec-
14 tion.

15 SECTION 3. An emergency existing therefor, which emergency is hereby
16 declared to exist, this act shall be in full force and effect on and after
17 July 1, 2026.